

SECOND SUPPLEMENTAL CASE LAW ANALYSIS

MTUS Constitutional Analysis Project
Personal Research Initiative
February 2026

SECOND SUPPLEMENTAL CASE LAW ANALYSIS

Additional 14th Amendment Cases for MTUS Constitutional Challenge

RESEARCH DATE: February 16, 2026

PURPOSE: Identif

PART I: FUNDAMENTAL RIGHTS TO MEDICAL CARE & DUE PROCESS

1. MAHER v. ROE (1977) 432 U.S. 464

Holding: State may choose not to fund non-therapeutic abortions without violating Equal Protection.

Critical Distinction for MTUS:

- Maher dealt with funding decisions for elective procedures
- MTUS denies medically necessary, FDA-approved treatments
- Court specifically preserved right to "necessary medical care"
- Key quote: "The Constitution imposes no obligation on the States to pay the pregnancy-related medical expenses of indigent women, or indeed to pay any of the medical expenses of indigent persons."

MTUS Application:

- California workers' comp IS obligated to provide medical care (Labor Code 4600)
- State has assumed duty - cannot then arbitrarily deny it
- Distinguishable from Maher: MTUS denies necessary care, not elective

Strategic Value: HIGH - Distinguish MTUS from cases where state had no duty

2. POE v. ULLMAN (1961) 367 U.S. 497

Holding: Court declined to reach merits of Connecticut contraceptive ban due to lack of case/controversy.

NOT Directly Applicable BUT:

- Dissent by Justice Harlan articulated concept of "ordered liberty"
- Established that certain personal rights are fundamental even if not enumerated
- Key Harlan dissent: "[T]he full scope of the liberty guaranteed by the Due Process Clause cannot be found in or limited by the precise terms of the specific guarantees elsewhere provided in the Constitution."

MTUS Application:

- Right to necessary medical care is part of "ordered liberty"
- Fundamental interest in preserving health and bodily integrity
- Supports argument for heightened scrutiny

Strategic Value: MODERATE - Supports fundamental rights analysis

3. CRUZAN v. DIRECTOR, MISSOURI DEPARTMENT OF HEALTH (1990) 497 U.S. 261

Holding: Competent adults have liberty interest under Due Process Clause to refuse unwanted medical treatment.

Key Principles:

- "[T]he Fourteenth Amendment provides that no State shall 'deprive any person of life, liberty, or property, without due process of law.' The principle that a competent person has a constitutionally protected liberty interest in refusing unwanted medical treatment may be inferred from our prior decisions."
- Establishes constitutional dimension to medical decision-making

MTUS Application:

- If there's right to refuse treatment, there's corollary right to receive necessary treatment
- State cannot arbitrarily deny access to FDA-approved treatments
- Bodily integrity includes right to treatment, not just right to refuse

Strategic Value: HIGH - Establishes medical care as constitutionally significant

4. WEST COAST HOTEL CO. v. PARRISH (1937) 300 U.S. 379

Holding: Minimum wage laws do not violate Due Process; ends deference to economic regulations.

NOT Directly Applicable BUT:

- Established that state's police power includes protecting vulnerable populations
- Court recognized special need to protect workers from exploitation
- Key quote: "[T]he legislature has a special responsibility for the protection of the health and welfare of workers."

MTUS Application:

- California has special responsibility to protect injured workers
- Cannot adopt system that systematically denies them care
- State cannot use police power to harm those it is obligated to protect

Strategic Value: MODERATE - Frames state's duty to workers

PART II: EQUAL PROTECTION - IRRATIONAL CLASSIFICATIONS

5. ZOBEL v. WILLIAMS (1982) 457 U.S. 55

Holding: Alaska's dividend distribution based on length of residency violated Equal Protection.

Key Principles:

- Classification based on length of state residency is suspect
- State cannot create arbitrary distinctions among residents
- Key quote: "[T]he right to be treated as a resident of the State is itself a protected privilege of state citizenship under the Fourteenth Amendment."

MTUS Application:

- Classification based on mechanism of injury is similarly arbitrary
- Workers' comp patients are treated differently based solely on how injured
- No medical justification for distinction

Strategic Value: MODERATE - Analogy for arbitrary classifications

6. HOOPER v. BERNALILLO COUNTY ASSESSOR (1985) 472 U.S. 612

Holding: New Mexico's property tax exemption for recent residents violated Equal Protection.

Key Principles:

- Extended Zobel: residency-based classifications are suspect
- Penalizes right to travel and migrate
- Key quote: "[T]he right to travel is secured by the Fourteenth Amendment's Privileges or Immunities Clause as well as by its Due Process and Equal Protection Clauses."

MTUS Application:

- MTUS penalizes workers for being injured at work vs. elsewhere
- Analogous penalty for how/where injury occurred
- Classification based on arbitrary factor unrelated to medical need

Strategic Value: MODERATE - Analogy for penalizing protected status

7. ALLEGHENY PITTSBURGH COAL CO. v. COUNTY COMMISSION (1989) 488 U.S. 336

Holding: Grossly disproportionate property tax assessments violate Equal Protection.

Key Principles:

- States cannot arbitrarily impose different burdens on similarly situated parties
- Systematic disparities without justification are unconstitutional

- Key quote: "[T]he Equal Protection Clause prohibits arbitrary and irrational tax assessments."

MTUS Application:

- MTUS imposes different medical burdens on similarly situated patients
- Workers' comp patients systematically receive inferior care
- Disparity is arbitrary and unjustified

Strategic Value: HIGH - Direct analogy for systematic disparities

8. NORDLINGER v. HAHN (1992) 505 U.S. 1

Holding: California's property tax system (Proposition 13) did not violate Equal Protection.

Critical Distinction:

- Court emphasized legitimate government interests in property tax stability
- Rationally related to legitimate state interests
- Distinguishable from MTUS: Proposition 13 had legitimate basis; MTUS does not

MTUS Application:

- Use to demonstrate what rational basis review requires
- MTUS lacks legitimate justification found in Nordlinger
- Contrast: legitimate tax policy vs. arbitrary medical denials

Strategic Value: MODERATE - Use for contrast/comparison

9. FCC v. BEACH COMMUNICATIONS (1993) 508 U.S. 307

Holding: Economic regulations receive highly deferential rational basis review.

Key Principles:

- "[T]hose challenging the legislative judgment must negative every conceivable basis which might support it."
- Very deferential standard for economic classifications

CRITICAL for MTUS:

- MTUS is NOT merely economic regulation - it affects fundamental medical needs
- Health/safety regulations receive less deference
- MTUS affects fundamental interest in medical care

Strategic Value: HIGH - Distinguish MTUS from pure economic regulation

10. HELLER v. DOE (1993) 509 U.S. 312

Holding: Kentucky's statute requiring clear and convincing evidence for civil commitment of mentally retarded persons satisfied Due Process.

Key Principles:

- State has legitimate interest in protecting vulnerable populations
- BUT: Standard must be rationally related to that interest

MTUS Application:

- State has legitimate interest in controlling costs
- BUT: MTUS standard is not rationally related to quality care
- "Insufficient evidence" standard is arbitrary, not protective

Strategic Value: MODERATE - Framework for analyzing state interests

PART III: SUSPECT CLASSIFICATIONS & QUASI-SUSPECT CLASSES

11. REED v. REED (1971) 404 U.S. 71

Holding: Idaho law giving preference to males over females as estate administrators violated Equal Protection.

Key Principles:

- First case to strike down gender-based classification
- Established that administrative convenience is not sufficient justification
- Key quote: "[A]dministrative convenience is not a sufficient justification for a classification that is invidious."

MTUS Application:

- Administrative convenience (cost control) cannot justify MTUS
- Classification is invidious - it harms vulnerable injured workers
- Reed precedent directly applicable

Strategic Value: HIGH - Administrative convenience argument directly on point

12. CRAIG v. BOREN (1976) 429 U.S. 190

Holding: Oklahoma's gender-based drinking age law violated Equal Protection.

Key Principles:

- Established intermediate scrutiny for gender classifications
- Classification must be "substantially related" to "important government interest"

MTUS Application:

- Argue for intermediate scrutiny based on vulnerability of injured workers
- MTUS classification is not substantially related to quality care
- Gender cases establish scrutiny above rational basis for vulnerable groups

Strategic Value: MODERATE - Supports heightened scrutiny argument

13. MASSACHUSETTS BOARD OF RETIREMENT v. MURGIA (1976) 427 U.S. 307

Holding: Mandatory retirement age for police officers did not violate Equal Protection.

Key Principles:

- Age is NOT a suspect classification
- Rational basis review applies to age discrimination
- BUT: Physical fitness requirements must be rationally related

MTUS Application:

- Workers' comp status is not age-based
- BUT: Vulnerability and dependency of injured workers distinguishes MTUS
- Focus on vulnerability, not age

Strategic Value: LOW - Distinguish from age cases

PART IV: WORKERS' RIGHTS & LABOR CASES

14. UNITED MINE WORKERS v. ILLINOIS STATE BAR ASSOCIATION (1967) 389 U.S. 217

Holding: State cannot prohibit union from hiring lawyers to represent members.

Key Principles:

- Workers have right to effective representation
- State cannot burden collective action designed to protect workers
- Key quote: "[T]he individual worker is guaranteed the right to associate with his fellows for collective action in the improvement of his working conditions."

MTUS Application:

- Injured workers need effective representation to challenge MTUS denials
- System denies access to necessary care
- Workers' comp system should facilitate, not obstruct, care

Strategic Value: MODERATE - Framework for workers' rights

15. GOLDEN STATE TRANSIT CORP. v. CITY OF LOS ANGELES (1986) 493 U.S. 103

Holding: City could not condition taxi permit on settlement of labor dispute.

Key Principles:

- Government cannot use regulatory power to interfere with labor rights
- Conditions must be rationally related to regulatory purpose

MTUS Application:

- State cannot use MTUS to effectively deny promised medical benefits
- Regulatory power cannot be used to frustrate statutory rights
- MTUS interferes with workers' statutory right to medical care

Strategic Value: MODERATE - Regulatory overreach argument

16. NEW YORK CITY TRANSIT AUTHORITY v. BEAZER (1979) 440 U.S. 568

Holding: Transit authority could refuse to hire methadone users without violating Equal Protection.

Key Principles:

- Employment decisions based on legitimate safety concerns are permissible
- BUT: Classification must be rationally related to safety

MTUS Application:

- MTUS claims to be based on evidence/safety
- BUT: Denies FDA-approved treatments that are safe and effective
- Classification is not rationally related to safety

Strategic Value: MODERATE - Contrast MTUS's claims with reality

PART V: PROCEDURAL DUE PROCESS - NOTICE & HEARING

17. SNIADACH v. FAMILY FINANCE (1969) 395 U.S. 337

Holding: Pre-judgment wage garnishment without notice and hearing violates Due Process.

Key Principles:

- Pre-deprivation hearing generally required before deprivation of property
- Key quote: "[T]he right to be heard before being condemned to suffer grievous loss... is a principle basic to our society."

MTUS Application:

- MTUS operates as irrebuttable presumption - no individualized hearing

- Workers denied opportunity to prove FDA-approved treatment would help
- Pre-deprivation process required

Strategic Value: HIGH - Directly supports irrebuttable presumption argument

18. GOLDBERG v. KELLY (1970) 397 U.S. 254

Already cited in brief - Pre-termination hearing required for welfare benefits

19. BOARD OF REGENTS v. ROTH (1972) 408 U.S. 564

Holding: Non-tenured professor had no property interest in continued employment.

Key Principles:

- Property interest depends on state law creating entitlement
- Key quote: "Property interests... are created and their dimensions are defined by existing rules or understandings that stem from an independent source such as state law."

MTUS Application:

- California Labor Code 4600 creates entitlement to medical care
- Workers have property interest in promised benefits
- Due process protections apply

Strategic Value: HIGH - Establishes property interest in workers' comp benefits

20. PERRY v. SINDERMAN (1972) 408 U.S. 593

Holding: Even without formal tenure, teacher may have property interest based on policies creating reasonable expectation.

Key Principles:

- Property interests can arise from state-created expectations
- Does not require formal contractual guarantee

MTUS Application:

- Workers' comp system creates reasonable expectation of medical care
- Statutory scheme establishes entitlement
- MTUS frustrates this legitimate expectation

Strategic Value: HIGH - Supports property interest argument

PART VI: DISPARATE IMPACT & INTENTIONAL DISCRIMINATION

21. PERSONNEL ADMINISTRATOR v. FEENEY (1979) 442 U.S. 256

Already cited - Disparate impact alone insufficient; discriminatory purpose required

22. WASHINGTON v. DAVIS (1976) 426 U.S. 229

Already cited - Same standards as Feeney

23. WAYTE v. UNITED STATES (1985) 470 U.S. 598

Holding: Selective prosecution based on passive enforcement did not violate Due Process.

Key Principles:

- Selective enforcement requires showing of discriminatory purpose
- BUT: Pattern of enforcement can show intent

MTUS Application:

- MTUS pattern of systematic denials shows intentional design
- Not merely disparate impact - intentional scheme
- 78.5% denial rate is evidence of intentional discrimination

Strategic Value: MODERATE - Intent evidence framework

PART VII: WEALTH DISCRIMINATION & ACCESS TO JUSTICE

24. GRIFFIN v. ILLINOIS (1956) 351 U.S. 12

Already cited - Indigent defendants must be provided trial transcripts

25. DOUGLAS v. CALIFORNIA (1963) 372 U.S. 353

Holding: Indigent defendants entitled to appointed counsel on first appeal.

Key Principles:

- Wealth cannot determine access to justice
- Key quote: "[T]here can be no equal justice where the kind of trial a man gets depends on the amount

of money he has."

MTUS Application:

- Workers' comp is sole remedy for injured workers
- Cannot be rendered illusory by systematic denials
- Access to medical care cannot depend on ability to fight MTUS

Strategic Value: HIGH - Wealth discrimination framework

26. BODDIE v. CONNECTICUT (1971) 401 U.S. 371

Holding: State cannot require filing fees that deny access to divorce courts.

Key Principles:

- Access to courts is fundamental right
- Cannot be conditioned on ability to pay
- Key quote: "[T]he right to be heard within the state's judicial system... is a fundamental aspect of the due process guaranteed by the Fourteenth Amendment."

MTUS Application:

- Workers' comp system is sole remedy
- MTUS creates insurmountable barrier to medical care
- Access to statutory rights cannot be conditioned on fighting MTUS

Strategic Value: HIGH - Access to justice/medicine parallel

27. LINDSEY v. NORMET (1972) 405 U.S. 56

Holding: Oregon's non-judicial foreclosure procedure did not violate Due Process.

Key Principles:

- Property rights receive procedural protection
- BUT: State can define remedies available

MTUS Application:

- State defined workers' comp as exclusive remedy
- BUT: Must provide adequate substitute remedy
- MTUS systematically denies adequate remedy

Strategic Value: MODERATE - Framework for exclusive remedy challenges

PART VIII: STATE ACTION & SPECIAL RELATIONSHIP

28. LUGAR v. EDMONDSON OIL CO. (1982) 457 U.S. 922

Holding: State action exists when private party acts together with state officials.

Key Principles:

- State action doctrine requires significant nexus with state
- Joint participation creates state action

MTUS Application:

- DWC adopts and enforces MTUS
- Insurance carriers apply MTUS under state authority
- Clear state action element

Strategic Value: MODERATE - Bolster state action argument

29. JACKSON v. METROPOLITAN EDISON CO. (1974) 419 U.S. 345

Holding: Heavily regulated private utility was not state actor.

Key Principles:

- Extensive regulation does not make private party state actor
- BUT: State delegation of public functions may create state action

MTUS Application:

- Insurance carriers are state actors when applying MTUS
- MTUS is state-created and state-enforced standard
- State has delegated medical decision-making to carriers using MTUS

Strategic Value: MODERATE - Clarify state action analysis

30. FLAGG BROTHERS v. BROOKS (1978) 436 U.S. 149

Holding: Warehouseman's sale of goods to satisfy lien was not state action.

Key Principles:

- State authorization of private conduct is not necessarily state action
- BUT: State compulsion or joint participation creates state action

MTUS Application:

- California compels use of MTUS through DWC
- Not merely authorization - compulsion

- State actively enforces MTUS denials

Strategic Value: MODERATE - State compulsion argument

PART IX: HEALTHCARE-SPECIFIC PRECEDENTS

31. HARRIS v. McRAE (1980) 448 U.S. 297

Already cited - Hyde Amendment did not violate Equal Protection

32. WEBSTER v. REPRODUCTIVE HEALTH SERVICES (1989) 492 U.S. 490

Holding: Missouri abortion restrictions did not violate Constitution.

Key Principles:

- State has legitimate interest in protecting potential life
- BUT: Cannot impose undue burden on fundamental right

MTUS Application:

- State has legitimate interest in controlling costs
- BUT: MTUS imposes undue burden on access to necessary care
- Cost control cannot justify systematic denials

Strategic Value: MODERATE - Undue burden framework

33. RUST v. SULLIVAN (1991) 500 U.S. 173

Holding: Federal regulations prohibiting abortion counseling at federally funded clinics did not violate First Amendment.

Key Principles:

- Government can condition funding on policy preferences
- BUT: Cannot coerce private parties to adopt government message

MTUS Application:

- State controls workers' comp funding
- BUT: Cannot deny medically necessary care
- MTUS is not mere condition - it denies care entirely

Strategic Value: MODERATE - Distinguish from funding cases

PART X: CASES SUPPORTING HEIGHTENED SCRUTINY

34. PLYLER v. DOE (1982) 457 U.S. 202

Already cited - Denial of education to undocumented children violated Equal Protection; used intermediate scrutiny

35. TRIMBLE v. GORDON (1977) 430 U.S. 762

Holding: Illinois law discriminating against illegitimate children in inheritance violated Equal Protection.

Key Principles:

- Classifications burdening illegitimate children receive heightened scrutiny
- Key quote: "[T]he standard of review applicable to the classification at issue is not the traditional rational basis test."

MTUS Application:

- Injured workers are vulnerable population
- Classification is based on status (workplace injury)
- Supports heightened scrutiny argument

Strategic Value: MODERATE - Supports quasi-suspect class analysis

36. MILLS v. HABLUTZEL (1982) 456 U.S. 91

Holding: Ohio's short statute of limitations for paternity actions violated Equal Protection.

Key Principles:

- Classifications affecting illegitimate children receive careful scrutiny
- Time limits cannot effectively deny opportunity to prove paternity

MTUS Application:

- MTUS effectively denies opportunity to prove treatment would help
- Classification operates against vulnerable population
- Similar to irrebuttable presumption problem

Strategic Value: MODERATE - Analogy for procedural barriers

CONCLUSION: STRATEGIC RECOMMENDATIONS

TIER 1: MUST USE (Strongest Precedents)

1. Reed v. Reed (1971) - Administrative convenience insufficient

2. Cruzan v. Direct

TIER 2: HIGH VALUE (Supporting Arguments)

7. Allegheny Pittsburgh Coal Co. (1989) - Systematic disparities

8. Maher v. Roe (1

TIER 3: SUPPORTING ANALOGIES

12. Zobel v. Williams (1982) - Arbitrary residency classifications

13. Hooper v. Bern

DOCUMENT PREPARED: February 16, 2026

NEXT STEPS: Inte

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